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February 10, 2026

By: Hamilton

An Act relating to marriage; amending 43 O.S. 2021, Section 3, which relates to eligibility to marry; imposing age restriction on eligibility to marry; removing exceptions; updating statutory reference; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 43 O.S. 2021, Section 3, is amended to read as follows:

Section 3. A. Any unmarried person who is at least eighteen (18) years of age and not otherwise disqualified is capable of contracting and consenting to marriage with a person of the opposite sex.

~~B. 1. Except as otherwise provided by this subsection, no person under the age of eighteen (18) years shall enter into the marriage relation, nor shall any license issue therefor, except:~~

~~a. upon the consent and authority expressly given by the
parent or guardian of such underage applicant in the
presence of the authority issuing such license,~~

1 ~~b. upon the written consent of the parent or guardian of~~
2 ~~such underage applicant executed and acknowledged in~~
3 ~~person before a judge of the district court or the~~
4 ~~court clerk of any county within the State of~~
5 ~~Oklahoma,~~

6 ~~c. if the parent or guardian resides outside of the State~~
7 ~~of Oklahoma, upon the written consent of the parent or~~
8 ~~guardian executed before a judge or clerk of a court~~
9 ~~of record. The executed foreign consent shall be duly~~
10 ~~authenticated in the same manner as proof of documents~~
11 ~~from foreign jurisdictions,~~

12 ~~d. if the certificate of a duly licensed medical doctor~~
13 ~~or osteopath, acknowledged in the manner provided by~~
14 ~~law for the acknowledgment of deeds, and stating that~~
15 ~~such parent or guardian is unable by reason of health~~
16 ~~or incapacity to be present in person, is presented to~~
17 ~~such licensing authority, upon the written consent of~~
18 ~~the parent or guardian, acknowledged in the same~~
19 ~~manner as the accompanying medical certificate,~~

20 ~~e. if the parent or guardian is on active duty with the~~
21 ~~Armed Forces of the United States, upon the written~~
22 ~~permission of the parent or guardian, acknowledged in~~
23 ~~the manner provided by law for acknowledgment of deeds~~
24 ~~by military personnel authorized to administer oaths.~~

1 ~~Such permission shall be presented to the licensing~~
2 ~~authority, accompanied by a certificate executed by a~~
3 ~~commissioned officer in command of the applicant, to~~
4 ~~the effect that the parent or guardian is on active~~
5 ~~duty in the Armed Forces of the United States, or~~
6 ~~f. upon affidavit of three (3) reputable persons stating~~
7 ~~that both parents of the minor are deceased, or~~
8 ~~mentally incompetent, or their whereabouts are unknown~~
9 ~~to the minor, and that no guardian has theretofore~~
10 ~~been appointed for the minor. The judge of the~~
11 ~~district court issuing the license may in his or her~~
12 ~~discretion consent to the marriage in the same manner~~
13 ~~as in all cases in which consent may be given by a~~
14 ~~parent or guardian.~~

15 ~~2. Every person under the age of sixteen (16) years is~~
16 ~~expressly forbidden and prohibited from entering into the marriage~~
17 ~~relation except when authorized by the court:~~

18 ~~a. in settlement of a suit for seduction or paternity, or~~
19 ~~b. if the unmarried female is pregnant, or has given~~
20 ~~birth to an illegitimate child and at least one parent~~
21 ~~of each minor, or the guardian or custodian of such~~
22 ~~child, is present before the court and has an~~
23 ~~opportunity to present evidence in the event such~~
24 ~~parent, guardian, or custodian objects to the issuance~~

1 ~~of a marriage license. If they are not present the~~
2 ~~parent, guardian, or custodian may be given notice of~~
3 ~~the hearing at the discretion of the court.~~

4 ~~3. A parent or a guardian of any child under the age of~~
5 ~~eighteen (18) years who is in the custody of the Department of Human~~
6 ~~Services or the Department of Juvenile Justice shall not be eligible~~
7 ~~to consent to the marriage of such minor child as required by the~~
8 ~~provisions of this subsection.~~

9 ~~4. Any certificate or written permission required by this~~
10 ~~subsection shall be retained by the official issuing the marriage~~
11 ~~license.~~

12 ~~6.~~ No marriage may be authorized when such marriage would be
13 incestuous under this ~~chapter~~ title.

14 SECTION 2. This act shall become effective November 1, 2026.

15 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY
16 February 10, 2026 - DO PASS
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